SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 2, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling, in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
LINES 1-2	22CV402055	VolumeFi Software, Inc. vs Zaki Manian	**Hearing: Pro Hac Vice** Parties to appear.
LINE 3	23CV421624	Faye Sears vs Amanda Hoffman	**Motion to Withdraw as Attorney** Parties to appear.
LINE 4	24CV431707	Brandi Pizzola et al vs Val Chris Investments, Inc et al	**Motion to Withdraw as Attorney** Parties to appear.
LINE 5	25CV464587	Masoud Borhani vs Pedro Ramirez Rodriguez	**Motion to Withdraw as Attorney** Parties to appear.

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9:00 A.M.

Calendar Lines # 1- 2
Case Name Fuheng, Inc. et al vs Zihan Liu
Case No. 24CV441593

Motion to Set Aside (Line #1) & Motion to Strike (Line #2)

MOTION TO SET ASIDE ATTORNEY'S FEES (LINE #1)

I. BACKGROUND

Before the court is Defendant Zinah Liu's ("Liu") Motion to Set Aside and Vacate the award for attorney's fees. This motion arises from plaintiff's motion for attorney's fees that came for hearing on April 17, 2025 in front of the Honorable Shella Deen. After the hearing on the motion, Judge Deen awarded attorney's fees for the plaintiff in the amount of $10,400.00.

On February 3, 2026, the Court heard the Defendant's motion for reconsideration to the March 12, 2025 order grating plaintiff' motion to strike the third cause of action in the first amended complaint and motion for attorney's fees. The Court denied both requests and noted that the defendant failed to comply with Code of Civil Procedure section 1008(a) and also failed to demonstrate any new or different facts, circumstances, or law warranting reconsideration.

Plaintiffs oppose the motion and filed opposition briefs on March 16, 2026 and provided subsequent supplemental briefing in support of its opposition to defendant's motion to set aside attorney fees. The plaintiff asserts that the Court already heard and denied Defendant's motion for reconsideration of the same order and seeks to have this matter denied. Defendant asserts that the defendant seeks to relitigate the matter under section 473, which is improper as constitutes a collateral attack on a final order that has already been litigated and there is no presentation of new facts. (Plaintiff's opposition, p. 2). Plaintiff contends that the party may not repeatedly challenge the same ruling by filing successive motions and that the defendant fails to articulate any new or different facts, circumstances, or law meriting reconsideration and vacating the attorney's fees award and that Defendant appeared at the April 17, 2025 hearing. (*Id.,* at p. 3). On April 28, 2025, the defendant filed a motion for reconsideration. Plaintiff asserts that Defendant raises the same arguments that she did not receive notice of the fee motion, which was already considered in the February 3, 2026 hearing.

The Court has carefully reviewed the moving papers, including Defendant's Motion to Set Aside (totaling 7 pages); Declaration of Zihan Liu in support of the motion to vacate/set aside (totaling 13 pages); Plaintiffs opposition (totaling 5 pages); Declaration of Andy Yang in opposition to the motion to set aside (totaling 11 pages); opposition of Zihan Liu to plaintiff's motion for sanctions and attorney's fees (totaling 4 pages); Plaintiff's reply in support of attorney's fees and sanctions and supplemental reply Declaration of Andy Yang with attached Exhibits A-B (totaling 13 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure

A. CODE OF CIVIL PROCEDURE SECTION 473(B)

Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

> The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . .

The mandatory provision of section 473(b) reads, in pertinent part, as follows:

> Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

The general underlying purpose is to promote the determination of actions on their merits. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830). Under this statute, an application for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143).

B. CODE OF CIVIL PROCEDURE 473.5

Code of Civil Procedure section 473.5(a) provides: "When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered."

C. CODE OF CIVIL PROCEDURE 473(D)

Under Code of Civil Procedure section 473(d), "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

III. ANALYSIS

Here, Defendant seeks to set aside an order granting attorney's fees in the amount of $10,400.00 that the Honorable Shella Deen awarded after hearing on April 17, 2025. The order for attorney's fees was authorized over 13 months to this hearing. The defendant filed a motion for reconsideration on April 28, 2025, Defendant Liu sought to reconsider the $10,400.00 in attorney's fees awarded, admitting she failed to file opposition papers, but argued that she was not properly served with the motion papers. Plaintiff has rebutted this argument and there has been no evidence presented to show otherwise. Defendant Liu also argued that the attorney's fees award was excessive, unreasonable, and unsupported. The motion for reconsideration came for hearing on February 3, 2026 and was denied on the grounds that the arguments presented did not constitute new or different facts or circumstances to support reconsideration. Defendant's motion to set aside consists of the same arguments and does not present new facts at issue. Relitigating this issue on essentially the same facts would not be in the interest of justice or judicial economy. Even if the Court considers the substance of the defendant's present motion, the Court finds that there has been no showing that Code of Civil Procedure 473(b), 473.,5, or 473(d) is applicable.

IV. CONCLUSION

Based on the foregoing, Court DENIES the motion to vacate and set aside the April 17, 2025 order for attorney's fees. The Court will prepare the formal Order.

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MOTION TO STRIKE (LINE #2)

I. BACKGROUND

Before the court is defendant/ cross-complainant Zihan Liu's special motion to strike plaintiffs' complaint pursuant to Code of Civil Procedure §425.16 (anti-SLAPP). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

A. COMPLAINT

Plaintiff Fuheng Inc. ("Fuheng") provides quality Chinese medicine herbal products to its large customer base spanning across North America and Australia. (Complaint, ¶5). Plaintiff Fuheng has sold over a hundred thousand bottles of Coughing Tea, an herbal composition to relieve symptoms of cough. (*Id.*) Plaintiff Dalong Zhang ("Zhang") formulated the composition of Coughing Tea and other popular Chinese medicine tea products, three of which are patent pending. (*Id.*). Plaintiff Fuheng has built a large online customer base. (*Id.*). Plaintiff Fuheng's products are offered across multiple e-commerce platforms including Fuhengherbs.com. (*Id.*).

In addition to offering Fuheng products online, plaintiff Zhang, a traditional Chinese medicine ("TCM") practitioner, conducts in-store and online diagnostics. (Complaint, ¶6). If the diagnostics show the customer is suffering from treatable conditions, plaintiff Zhang offers customers made-to-order tea, specifically designed to alleviate the symptoms. (*Id.*).

Defendant Zihan Liu ("Liu") first met plaintiffs on February 27, 2024, at approximately 4:30pm, to consult and receive a TCM diagnosis. (Complaint, ¶7). After the diagnosis, defendant Liu purchased 45 bottles of Chinese medicine tea for a total of $1,350 consisting of three distinct compositions of Chinese herbal medicine in the form of a tea. (Complaint, ¶8). Each composition is comprised of up to 20 Chinese herbal ingredients, made-to-order, and costly to make. (*Id.*). Defendant Liu paid for the products, signed both the order form and refund guarantee, and agreed to pick up the products on the next business day. (*Id.*). The refund guarantee promises that the purchased product can be returned if the product did not work as intended. (*Id.*).

After defendant Liu left the store, plaintiffs commenced the production process. (Complaint, ¶9). At approximately 7:00 p.m., defendant Liu called to cancel the order. (*Id.*). Plaintiff reminded defendant Liu that the refund guarantee is available only if the products were consumed and did not work as intended. (*Id.*). The custom made products were stored in plaintiff's refrigerator the next business day awaiting pick up by defendant Liu. (Complaint, ¶10). The product expired after three months at which time plaintiffs discarded it. (*Id.*).

On at least two occasions in February and March 2024, defendant Liu came into plaintiff's store threatening to continue posting negative reviews unless provided a refund. (Complaint, ¶11). During these two visits, defendant Liu took unauthorized pictures and drove away plaintiffs' customers with her verbally abusive comments and acts of harassment. (Complaint, ¶12).

On or about March 28, 2024, defendant Liu published an article on a Chinese social media platform, Xiaohongshu.com, viewed by thousands of mostly Chinese natives in and around the Bay Area where plaintiffs operate. (Complaint, ¶13). The article by defendant Liu states, in part, "Yesterday, as a witness, I attended the trial of other friends who sued a scammer. I thought that this person was so good at deceiving people, so he must have some knowledge. As a result, the trial found that this person was actually mentally retarded . . . I really couldn't hold it in the back. What kind of mental retardation is this? … So everyone see! He is at this level! Just sue him!" (*Id.*).

From about March 2024 to June 2024, defendant Liu published 31 comments on Xiaohongshu.com. (Complaint, ¶14). On March 4, 2024, defendant Liu published a comment which stated, "this person has serious delusion … In psychology, this is typical of npd symptom, do not be silent everyone, join me to sue him, the success rate will be high, get money back and let his store shut down." (*Id.*). On March 5, 2024, defendant Liu published a comment which stated, "I can't believe he is scamming people in public, the store is not small, returns are good too, I really can't believe this fraud can be this successful." (Complaint, ¶15). On March 5, 2024, defendant Liu published a comment which stated, "Everyone who wants to sue him can contact me, right now four people are ready to sue, damages involved exceed 12k, everyone can begin criminal litigation . . . He doesn't even know English." (Complaint, ¶16).

On June 8, 2024, defendant Liu or someone under her direction and control used the pseudonym "Lisa K" to publish the following on BBB.org concerning plaintiff Fuheng: "paid for $1350 for the herb drinks and then saw lots of lawsuits this owner was involved – and requested for refund after 20 minutes of the purchase." (Complaint, ¶17).

On June 11, 2024, defendant Liu or someone under her direction and control used the pseudonym "Lisa" to publish the following on Google Map Reviews concerning plaintiff Fuheng: "This is a total scam store and scam doctor – search it on Google and search the doctor's name from San Jose Superior Court, see how many scam lawsuits he's involved in." (Complaint, ¶18).

On June 20, 2024, plaintiffs commenced this action by filing a complaint against defendant Liu which asserts the following causes of action:

(1) Libel
(2) Trade Libel
(3) Invasion of Privacy – False Light
(4) Intentional Infliction of Emotional Distress
(5) Breach of Contract
(6) Intentional Interference with Contractual Relationships
(7) Intentional Interference with Prospective Economic Advantage
(8) Injunctive Relief

On July 29, 2024, defendant Liu filed an answer to plaintiffs' complaint and also filed a cross-complaint against plaintiffs Fuheng and Zhang.

On August 14, 2024, cross-defendants Fuheng and Zhang filed a demurrer to cross-complainant Liu's cross-complaint.

On September 19, 2024, defendant Liu filed a motion to strike plaintiffs' complaint pursuant to, among other bases, Code of Civil Procedure section 425.16 (anti-SLAPP). On January 27, 2025, the Honorable Shella Deen issued a detailed 14-page order in which she granted defendant Liu's motion to strike the sixth cause of action, but otherwise denied defendant Liu's motion to strike.

On September 30, 2024, cross-complainant Liu filed a first amended cross-complaint ("FAXC") against cross-defendants Fuheng and Zhang.

B. CROSS COMPLAINT

Cross-complainant Liu's FAXC alleges that on February 27, 2024, Liu paid $1,350 to Zhang and, on the same day, also paid a $24 consultation fee to Zhang. (FAXC, ¶3). Fuheng and Zhang manipulated Liu into purchasing $2,700 worth of herbal medicine by asserting during the consultation that Liu had severe diseases while failing to disclose any information about the ingredients used in the herbal medicines. (FAXC, ¶¶4 and 6). Fuheng and Zhang represented their herbal medicines were FDA-approved. (FAXC, ¶5). Cross-defendants' website featured the misleading claim of being an FDA-approved factory. (*Id.*). This deliberate misrepresentation was intended to defraud Liu into purchasing cross-defendants Fuheng and Zhang's herbal medicines. (*Id.*). During the consultation, Zhang asked Liu a series of inappropriate and sexually suggestive questions. (FAXC, ¶6).

Liu underwent a full-body examination at Kaiser Permanente and no heart, lung, kidney, liver, or stomach diseases were identified. (FAXC, ¶7). The diagnosis provided by cross-defendants Fuheng/ Zhang during the consultation on February 27, 2024 was false. (*Id.*).

Liu requested a full refund 20 minutes after the consultation and prior to cross-defendants Fuheng/ Zhang placing any orders, but Liu never received a refund. (FAXC, ¶8). Liu never received the herbal medicines prescribed by cross-defendants Fuheng/ Zhang. (FAXC, ¶9).

In March 2024, cross-defendants Fuheng/ Zhang contacted Liu and stated they would only issue a refund if Liu signed a contract agreeing not to pursue legal action or leave any public reviews. (FAXC, ¶10).

On March 4, 2024, Liu filed a small claims complaint ("Small Claims Action") against Fuheng/ Zhang. (FAXC, ¶12). On March 8, 2024, Liu's mother served cross-defendants with Liu's small claims complaint. (FAXC, ¶11). On June 14, 2024, Liu received a favorable notice of entry of judgment in the Small Claims Action which stated that Zhang, doing business as Fuheng, is ordered to pay Liu $1,375 plus $52.05 in costs. (FAXC, ¶12).

Liu experienced severe mental distress beginning with the false and fraudulent diagnosis, financial losses, and sexual harassment. (FAXC, ¶14.) Liu was diagnosed by a psychiatrist with severe depression, suicidal tendencies, and post-traumatic stress disorder, all directly caused by cross-defendants Fuheng/ Zhang. (*Id.*).

Liu's FAXC asserts the following causes of action:

(1) Intentional Infliction of Emotional Distress
(2) Fraud
(3) Malicious Prosecution
(4) False Advertisement
(5) Medical Malpractice
(6) Injunctive Relief

On October 30, 2024, cross-defendants Fuheng and Zhang filed (1) a special motion to strike the third cause of action [malicious prosecution] of cross-complainant Liu's FAXC; and (2) a demurrer to cross-complainant Liu's FAXC.

On October 31, 2024, cross-defendants Fuheng and Zhang filed a motion for attorney's fees incurred in connection with their special motion to strike the third cause of action [malicious prosecution] of cross-complainant Liu's FAXC.

On March 12, 2025, the court issued an order granting cross-defendants Fuheng and Zhang's special motion to strike the third cause of action of cross-complainant Liu's FAXC. The court sustained, in part, and overruled, in part, cross-defendants Fuheng and Zhang's demurrer to cross-complainant Liu's FAXC.

On March 21, 2025, cross-complainant Liu filed a second amended cross-complaint ("SAXC") which continues to assert the same causes of action identified in her FAXC.

On April 17, 2025 (order after hearing filed May 2, 2025), the court granted cross-defendants Fuheng and Zhang's motion for attorney's fees related to their special motion to strike in the amount of $10,400.

On April 21, 2025, cross-defendants Fuheng and Zhang filed a demurrer to cross-complainant Liu's SAXC.

On April 28, 2025, cross-complainant Liu filed a Notice of Appeal which appears to encompass the court's March 12, 2025 order granting cross-defendants Fuheng and Zhang's special motion to strike the third cause of action of cross-complainant Liu's FAXC and the court's April 17, 2025 ruling granting cross-defendants Fuheng and Zhang's motion for attorney's fees.

Also on April 28, 2025, cross-complainant Liu filed a motion for reconsideration of the court's March 12, 2025 order granting cross-defendants Fuheng and Zhang's special motion to strike the third cause of action of cross-complainant Liu's FAXC and the court's April 17, 2025 ruling granting cross-defendants Fuheng and Zhang's motion for attorney's fees.

On June 16, 2025, cross-complainant Liu filed an Abandonment of Appeal.

On July 23, 2025, the court issued an order sustaining, without leave to amend, cross-defendants Fuheng and Zhang's demurrer to all causes of action in cross-complainant Liu's SAXC except for fraud, "the only surviving cause of action."

On September 2, 2025 [prior to a hearing on cross-complainant Liu's motion for reconsideration], defendant/ cross-complainant Liu filed the two motions now before the court: (1) a motion to set aside/ vacate attorney fee order [of April 17, 2025 in the amount of $10,400]; and (2) a special motion to strike plaintiffs' complaint pursuant to Code of Civil Procedure §425.16 (anti-SLAPP).

On February 3, 2026 (order after hearing filed March 9, 2026), the court denied cross-complainant Liu's motion for reconsideration.

II. <u>LEGAL STANDARD</u>

Pursuant to Code of Civil Procedure 425.16, the Court may strike causes of action arising from an act in furtherance of the defendant's right of free speech or petition, unless the plaintiff establishes that there is a probability that the plaintiff will prevail on the claim. "The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected *conduct* from the undue burden of frivolous litigation." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393). "A SLAPP suit is a meritless lawsuit 'filed primarily to chill the defendant's exercise of First Amendment rights.'" (*Healthsmart Pacific, Inc. v. Kabateck* (2016) 7 Cal.App.5th 416, 426). To protect the valid exercise of free speech, the Legislature enacted the anti-SLAPP statute. (*Id*.). "The statute authorizes a special motion to strike a cause of action arising from the defendant's exercise of his or her constitutional right of petition or free speech, unless the plaintiff establishes a probability of prevailing on the claim." (*Ibid*.)

However, "[t]he anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity." (*Baral, supra,* 1 Cal.5th at 384).

"Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (*Baral, supra,* 1 Cal.5th at 384, citation omitted). The California Supreme Court has "described this second step as a 'summary-judgment-like procedure.' The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. '[C]claims with the requisite minimal merit may proceed.'" (*Id.* at 384-385 [citations omitted]; *see also, Yang v. Tenent* (2020) 48 Cal.App.5th 939, 945-46 ("The procedure made available to defendants by the anti-SLAPP statute has a distinctive two-part structure. [Citations.] A court may strike a cause of action only if the cause of action (1) arises an act in furtherance of the right of petition or free speech 'in connection with a public issue,' and (2) the plaintiff has not established 'a probability' of prevailing on the claim. [Citation]. [Citation].")). In making the determination in the second step, trial court considers "the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (*Equilon Enterprises v. Consumer Cause, Inc*. (2002) 29 Cal.4th 53, 67).

Section 425.16(f) provides that moving party must move to strike under this section within 60 days of service of the complaint. (Code of Civ. Proc. §425.16(f)).

III. <u>ANALYSIS</u>

As highlighted in the procedural history above, defendant Liu previously filed a special (anti-SLAPP) motion to strike plaintiffs' complaint on September 19, 2024, which the Honorable Shella Deen ruled on in an order dated January 27, 2025.

The court notes that the present special (anti-SLAPP) motion to strike is filed by defendant Liu's counsel who formally substituted into this matter on September 12, 2025. In the supporting memorandum of points and authorities, defendant Liu acknowledges plaintiffs filed the subject complaint on June 18, 2024, serving it upon defendant Liu on June 28, 2024 and the instant special motion to strike is brought well beyond the 60-day window generally authorized by Code of Civil Procedure section 425.16, subdivision (f).[1]

Timeliness of the motion aside, the court can only deduce that defendant Liu did not inform her new counsel that she had previously filed a special (anti-SLAPP) motion to strike plaintiffs' complaint and/ or that defendant Liu's new counsel did not adequately review the docket in this matter to recognize defendant Liu already filed and the court already ruled upon such a motion. In either case, the instant motion to strike is procedurally improper.

Defendant Liu did not timely seek reconsideration of the court's ruling on her earlier special (anti-SLAPP) motion to strike plaintiffs' complaint. Plaintiffs have not filed an amended complaint to add any additional causes of action.

> "An anti-SLAPP motion is not a vehicle for a defendant to obtain a dismissal of claims in the middle of litigation; it is a procedural device to prevent costly, unmeritorious litigation at the initiation of the lawsuit." (*San Diegans for Open Government v. Har Construction, Inc.* (2015) 240 Cal.App.4th 611, 625–626 [192 Cal. Rptr. 3d 559]). To minimize this problem, section 425.16, subdivision (f), should be interpreted to permit an anti-SLAPP motion against an ***amended*** complaint if it could not have been brought earlier, but to prohibit belated motions that could have been brought earlier (subject to the trial court's discretion to permit a late motion). (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2018) 4 Cal.5th 637, 645 (emphasis added)—anti-SLAPP motion timely only as to two new causes of action pleaded for the first time in the third amended complaint).

Defendant Liu has cited no legal authority, factual basis, or good cause for this court to entertain a second special (anti-SLAPP) motion to strike directed at plaintiffs' complaint.

[1] Code of Civil Procedure section 425.16, subdivision (f), states, in relevant part, "The special motion may be filed within 60 days of the service of the complaint or, in the court's discretion, at any later time upon terms it deems proper."

IV. CONCLUSION Accordingly, defendant Liu's special motion to strike plaintiffs' complaint pursuant to Code of Civil Procedure section 425.16 (anti-SLAPP) is DENIED.

Calendar Lines # 4
Case Name Christopher Lockhart vs Jeremy Mariscal et al
Case No. 23CV417259

Motion for an Order Attaching the Spousal Wage Earnings of Jessica Mariscal

I. BACKGROUND

On August 15, 2025, Plaintiff Christopher Lockhart filed a motion for an order attaching the spousal wage earnings of Jessical Mariscal pursuant to Civil Code of Procedure section 706.109. On June 1, 2026, the plaintiff filed two separate proof of services for the judgment debtor Jeremy Mariscal and the judgment debtor's spouse Jessica Mariscal, each indicating personal service on May 3, 2026.

The matter is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the plaintiff's notice of motion, memorandum of points and authorizes, Declaration of Leslie Holmes and attached title documents to the moving papers (totaling 12 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

California Code of Civil Procedure sections 680.010-724.260, commonly referred to as the Enforcement of Judgment Law provides: "Except as otherwise provided by law, all property of the judgment debtor is subject to enforcement of a money judgment." (Cal. Code. of Civ. Proc. § 695.010(a).) Section 695.020(a) states that "[c]ommunity property is subject to enforcement of a money judgment as provided in the Family Code."

An earnings withholding order may not be issued against the earnings of the spouse of a judgment debtor except by court order upon noticed motion. (Cal. Code. of Civ. Proc. § 706.109).

Furthermore, "[e]xcept as otherwise expressly provided by statute, the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt." (Cal. Fam. Code § 910(a)).

III. ANALYSIS

Here, plaintiff moves for an order permitting it to garnish he wages of the judgment debtor, Jeremey Mariscal's spouse, Jessical Mariscal's earnings. On March 10, 2025, the Honorable Panthea Saban granted default judgment to the plaintiff in the amount of $79,475.68 against the judgment debtor Jeremy Mariscal and Circle Pi Motors. (Default Judgment dated March 10, 2025). The total award of $79,475.68 is comprised of the principal debt of $68,242,36, attorney's fees of $3,101.10, and prejudgment interest at the rate of $18.70 per day from February 10, 2025 per Judge Saban's orders. Plaintiff asserts that the present total sum due is $84,406.73 due to allowable costs for enforcement and post-judgment interest.

The Plaintiff asserts that at the time the debt was incurred, Jesscia Mariscal and Jeremy Mariscal were married and their earnings constitute community property under Code of Civil Procedure section 706.109. (Plaintiff's motion, p. 2). The plaintiff asserts that the judgment debtor is still married to his spouse Jessica Marsical, who is an employee at Kaiser Permanente. (*Id.,* at p. 3; Declaration of Holmes).

Plaintiff's counsel Leslie Holmes submitted a declaration attesting that the above belief is based on a " . . .a variety of sources, including but not limited to social medial account activity, recorded Interspousal Transfer Deed, and the like." (Declaration of Holmes, p. 5). Plaintiff's counsel also attached screen shots of Jesscia Mariscal's social media page ". . .facebook page indicating that she is married to Jeremy Mariscal along with an Interspousal Transfer Deed that was recorded in Santa Clara County." (*Id.*).

The Court notes that plaintiff's counsel's declaration was "[e]xecuted this 15th date of August, 2024. . ." which was a year before the motion as filed and prior to the default judgment authorized on March 10, 2025. This may be a scrivener's error as to the year. Even if the year reflected was a mistake and was executed in 2025, the Declaration is ten months old. The Declaration does not set forth efforts in attempting to resolve the debt with the judgment debtor or show collection efforts. The Facebook snap showing the date of February 16, 2021 is not authenticated and does not currently reflect the judgment debtor and Jesscia Marsical's current martial status. The interspousal transfer deed is dated February 25, 2020 and does not provide a current marital status update.

Plaintiff counsel does not provide any information regarding attempts to recover the judgment from the judgment debtor Jeremy Mariscal or Circle Pi Motors or efforts to resolve this judgment through settlement negotiations or compromise. There is no information as to why the plaintiff has been unable to satisfy its judgment with Jeremy Mariscal or Circle Pi Motors by recording liens, bank levy or so forth before garnishing the wages of his spouse Jessica Mariscal.

While California law provides that wages of a spouse during marriage is generally community property, and a judgment creditor may move for a court order withholding against a judgment debtor's spouse, the evidence proving the state of the marriage currently is deficient. Plaintiff must submit a public record evidence as to the current marital relationship as well as set forth evidence on attempts to collect or resolve the judgment with the judgment debtor Jeremy Mariscal or Circle Pi Motors.

IV. <u>CONCLUSION</u>

Based on the foregoing, the motion is DENIED without prejudice.

Calendar Lines # 5

Case Name Mark Sivertsen vs Ford Motor Company et al

Case No. 24CV429470

Motion for Attorney's Fees

I. <u>BACKGROUND</u>

Before the court is Plaintiff's motion for attorney's fees, costs and enhancer based on a resolution of claim arising out of Plaintiff's 2020 Ford Ranger, vehicle identification number 1FTER4EH9LLA70293, which was brought under the Song-Beverly Consumer Warranty Act. (Plaintiff's Motion, p. 7). Plaintiffs asserts it is the prevailing party after a 998 Agreement was signed for a $70,0000 in resolution of the case and attorney's fees, costs, and expenses. (*Id.*). The motion was filed on September 9, 2025, the motion was accompanied with a proof of service indicating electronic service on that same day.

Defendant Ford Motor Company ("Ford") opposes the motion on the grounds that the plaintiff cannot recover fees that are unreasonable and fails to meet its burden for establishing a basis for a fee enhancement.

On May 26, 2026, Plaintiff's filed a Declaration of Angel Baker regarding an order to show cause regarding dismissal after settlement and confirmed that while damages are resolved, attorney's fees are still at issue.

The Court has carefully reviewed the following: Plaintiff's notice and memorandum of points and authorities (totaling 18 pages); Declaration of Payam Shahian in support of plaintiff's motion and attached Exhibits 1-28 (totaling 272 pages); Declaration of Richard Kwak in support of plaintiff's motion and attached Exhibits 1-3 (totaling 26 pages); proof of service (totaling 3 pages); Plaintiff's request for judicial notice (totaling 7 pages); Exhibit list (totaling 4 pages); Defendant's opposition (totaling 17 pages); and the pleadings.

II. <u>LEGAL STANDARD</u>

A. ATTORNEY'S FEES AND COST

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (*See also,* Civ. Code § 1717(a)). "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178).

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (Civ. Code, § 1794(d)). Section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794).

Thus, the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559). "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Ibid.*).

B. CALCULATION FOR FEES

In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ibid.*). "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

"Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (*Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 247 [cleaned up]).

III. <u>ANALYSIS</u>

Plaintiff seeks attorney's fees, cost, and an enhancer in total amount of $20,444.78 based on a $70,000.00 998 resolution of a claim under the Song-Beverly Consumer Warranty Act. (Plaintiff's motion, p. 2). The breakdown of the total amount consists of the following: (1) $12,552.50 in attorney's fees based on 26.3 hours spent by nine attorneys and two law clerks; (2) a 1.35 multiplier enhancement on the attorney fees (or $4,393.38); (3) $1,498.90 in costs and expenses; and (4) an anticipated additional $2,000.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion. (*Id.*). The plaintiff seeks judicial notice of 27 separate documents Exhibits 1-27 to establish various Song-Beverly cases. The court denies this request as it will not take the substance of the document for the truth of the matter and relevancy to the extent that the Court will engage in an individual assessment of the case at hand. However, the Court has reviewed the documents.

Defendant opposes the motion and states that after the plaintiff accepted the 998 offer on July 16, 2026, Plaintiff made no effort to meet-and-confer prior to filing this attorney's fees motion and did not act in good faith. (Defendant's opposition, p. 5). Accordingly, defense seeks to strike the 4.2 hours and $1,533.00 in attorney's fees incurred in preparing the motion. (*Id.,* at p. 11). Defendant asserts that Plaintiff's law firm, Strategic Legal Practice seeks fees and a multiplier in a matter that is not unique, citing that discovery requests were filed similarly in hundreds of other case with only small factual difference such as the vehicle make, model, vehicle identification number, and purchase date. Thus, arguing that this matter did not present any novel or difficult issues; did not require skills that merit a multiplier as the case involved a template complaint, pro forma discovery, and boilerplate responses; did not preclude other employment by the attorneys; and that the contingent nature is part of its practice that is not unique to this case. (*Id.,* p. 5-6). Defense seeks a total reduction of $8,582.66 based on the following: a 30% reduction for inflated rates on plaintiff's' fees for filing the emotion and attending the hearing in the amount of $3,000.00; 30% reduction for unreasonable time from nine timekeepers in the amount of $3,765.75; costs in the amount of $1,498.90; and 0.1 negative multiplier to the remaining fees and costs in the amount of $1,318.01. (Defendant's Opposition, p. 16).

A. ATTORNEY'S FEES

Plaintiff asserts that the 998 offer was obtained after one and half years of litigation, which required the diligent work of plaintiff's counsel, that included research; drafting a complaint; reviewing defendant's answer; propounding discovery; responding to written discovery; exchanging expert discovery; attending a case management conference, mediation status conference, trial setting conference; receiving a motion for summary judgment or summary adjudication motion and defense's ex parte application to advance the hearing, receiving a demand for vehicle inspection and notice of deposition of the plaintiff, serving objections to the notice of deposition of the plaintiff and vehicle inspection; and evaluating a 998 offer that was ultimately accepted. (Plaintiff's motion, p. 7-9; Declaration of Kwok at p. 3-4). Plaintiff rebuts any allegation that efforts were unnecessary and resulting fees unreasonable on the grounds that plaintiff is entitled to prepare for trial. (*Id.,* at p. 8). Further, the plaintiff contends that "FMC's [defendant Ford Motor Company's] conduct forced Plaintiff to incur attorney's fees, costs, and expenses." (*Id.,* at p. 13). In regard to Defendant's assertion that Plaintiff's counsel overstaffed the case, Plaintiff contends that although nine attorneys and two law clerks were staffed on the case, only five attorneys and one law clerk (Richard Kwak, Edward Rodriguez, Breana Rucker, Nino Sanaia, Tyson Smith, and Sanam Vaziri) accounted for 17.3 hours and that tasks were not duplicative. (*Id.*).

Plaintiff sets forth the experience of SLP attorney's (Declaration of Shahian, p. 6-16) and also sets forth a Laffey Matrix fees and argues that its fees are lower than attorney's in this region. The attorney's rates are submitted as follows:

Primary Case Team
Richard Kwak 1-3 $510.84 ($473 x 1.08) $365
Breana Rucker 1-3 $510.84 ($473 x 1.08) $395
Nino Sanaia 1-3 $510.84 ($473 x 1.08) $475
Tyson Smith 11-19 $1,023.84 ($948 x 1.08) $525
Sanam Vaziri 20+ $1,232.28 ($1141 x 1.08) $610

(*Id.,* at p. 16).

Timekeeper Summary
Name Year Hours Rate
Avelino, Olivia 2025 1.1 $635.00
Carvalho, Tionna 2024 2.4 $595.00
Carvalho, Tionna 2025 3.1 $650.00
Kwak, Richard 2025 4.2 $365.00
Lunn, David 2025 0.4 $695.00
Mejia, Tara 2024 1.0 $395.00
Rangel, Steve 2023 1.0 $285.00
Rodriguez, Edward 2025 2.5 $345.00
Rucker, Breana 2024 2.0 $350.00
Rucker, Breana 2025 1.0 $395.00
Sanaia, Nino 2025 3.1 $475.00
Smith, Tyson 2024 3.0 $525.00
Vaziri, Sanam 2024 1.5 $610.00

(Exhibit 28, Declaration of Shahian, p. 269-272).

Defendant argues that the case settled at mediation after pro forma written discovery and that SLP cannot justify its high hourly rate, "exorbitant time" and staffing spent. (*Id.,* at p. 6). Defendant argues that the number of hours billed is unreasonable due to significant overlap and the basic nature of the case and cites that 11 billers ran up fees. (*Id.,* at p. 8-13). Defendant argues that Plaintiff's request for attorney's fees is unreasonably inflated, padded and layered with multiple timekeepers, boilerplate template work that did not require special skill, inefficient task allocation, and that the amount should not exceed more than $11,862.12. (*Id.* at p. 6).

The Court has reviewed the briefing and specifically the time entries submitted, and the arguments presented in support of the hourly rates requested. The Court finds that discovery and information gathering regarding basic and template form interrogoatires, special interrogoatires, and request for production, set one is overcharged given the basic nature of the case and reduces the following: 1 hour of work submitted by Breana Rucker in 2024 at the rate of $350.00[2]; 1 hour of work from Tara Mejia in 2024 at the rate of $395.00; and 1 hour of work from Tyson Smith at the rate of $525.00 per hour in 2024. Further given the straightforward nature of the present motion and failure to meet-and-confer which would have accounted for time, the court reduces the fee motion drafting by 2.5 hours by Richard Kwon at the rate of $365.00 in 2025.

The Court GRANTS attorney's fees in the amount of $10,370.00.

B. COST

Plaintiff seeks $1,498.90 in costs and expenses related to litigating and resolving this matter. (Exhibit 28 of Declaration of Shahian).

Defendant opposes the request for costs on the grounds that the plaintiff fails to meet its burden. Defense argues that plaintiff overstaffed the case and seeks unrecoverable fees and specific billing entries in Exhibit 28 demonstrates unreasonable and unreliable calculations. (Defendant's opposition, p. 13-14). Defense argues that the matter did not involve bespoke pleadings but rather were template non-novel theories similar to the hundreds of other cases that SLP handles. (*Id.*).

Upon review of the documents, the Court awards $1,498.90 in costs and expenses.

C. MULTIPLIER

Plaintiff asserts that a 1.35 multiplier is warranted based on the following: (1) "This excellent result alone merits a multiplier enhancement," in reference to the $70,000.00 recovery. (Plaintiff's motion, at p. 16); (2) the risks that non-recovery or delay was substantial. Plaintiff states that having taken the matter on a contingency basis, it assumed the risk of not getting paid at all or for several years. Thus, it seeks a 1.35 multiplier of $4,393.38 to reflect the risk of non or delayed payment. (*Id.*) and; (3) Plaintiff argues that the delay of payment justifies a multiplier citing that the complaint was filed on January 18, 2024 and it has not been paid for nearly two years. (*Id.*).

Defendant asserts that a multiplier is not warranted based on the boilerplate nature of the case, straight forward and basic nature of the case that required no special skills, early resolution of the case after template written discovery was propounded, and bulk filing of similar cases. Defense seeks a 0.1 negative multiplier downward of any recoverable fees based on plaintiff's counsel failure to meet-and-confer and expend resources prior to filing this motion and act in good faith, as well as the fair market value of legal services that should be reduced.

Based on the straight forward basic nature of the case, lack of demonstration of unique work pointing to a novel or difficult issue, type of case handled by SLP in the Song-Beverly matter, and early resolution at mediation absent further discovery (after initial written discovery) and no depositions, or no opposition motion work, the Court does not find that the plaintiff has demonstrated that a multiplier is warranted in this matter. The Court DENIES Plaintiff's request for a multiplier.

The Court also DENIES defendant's request to impose a negative multiplier for Plaintiff's failure to meet-and-confer about attorney's fees prior to filing the motion.

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[2] The Court notes a discrepancy in the attorney's fees amount regarding Breana Rucker in 2024, on p. 272 the amounts in 2024 are listed as $350.00 and increased to $395.00 in 2025, however on p. 271 the rate for discovery and information gathering is listed as $325.00. The sum of $12,552.50 however amounts to $350.00 rate so the Court applies that rate rather than the $325.00 listed.

D. ESTIMATED COSTS

Plaintiff requested $2,000.00 for anticipated time spent on preparing and submitting a reply brief and appearing for Court. However, the Court notes that no reply brief was filed by the plaintiff. Further, no appearance has yet been made and any appearance if made would not amount to that time on this straightforward motion. Plaintiff has not made a showing to prove this cost.

The defendant's oppose the $2,000.00 for similar reasons to other fees and costs noted above.

The Court DENIES the anticipated $2,000.00 that was estimated by the plaintiff.

IV. CONCLUSION

Based on the foregoing, the Court awards the plaintiff a total of 11,868.90 that consists of $10,370.00. in attorney's fees and $1,498.90.

The request for a 1.35 enhancer by the plaintiff is DENIED. The defendant's request for a negative 0.1 downward multiplier is DENIED. The request for anticipated cost of $2,000.00 addressed above for a reply brief that was not filed is DENIED.

Moving party to prepare the formal Order.

Calendar Lines # 6
Case Name Agnieszka Ayotte et al vs Ford Motor Company et al
Case No. 24CV45386

Petition to Compel Arbitration

I. BACKGROUND

On July 9, 2017, Plaintiffs Agnieszka Ayotte and Adam Biernacki ("Plaintiffs") purchased a 2017 Ford Escape, VIN: 1FMCU0GD5HUC27081 ("Subject Vehicle") from Future Ford Lincoln of Roseville ("Defendant"). (Complaint at ¶ 7). Plaintiffs delivered the Subject Vehicle to Defendant for substantial repair on at least one occasion. (*Id.* at ¶ 46). Plaintiffs allege that Defendant "breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 48). On December 12, 2024, Plaintiffs filed suit against Defendant and Ford Motor Company for violation of statutory obligations, namely the Song-Beverly Act. Plaintiffs bring the sole cause of action for negligent repair against Defendant Future Ford Lincoln of Roseville.

Defendant moves to compel arbitration of this action pursuant to the Retail Installment Sales Contract ("RISC"). Defendant argues the Arbitration Provision in the RISC is governed by the Federal Arbitration Act ("FAA") and California Arbitration Act ("CAA"). Defendant maintains it has not waived its right to arbitrate and no other grounds exist for revocation of the agreement. Having reviewed the language of the Arbitration Provision and the circumstances of its execution, the Court concludes that the motion should be granted.

II. LEGAL STANDARD

Defendant maintains that the FAA governs the Arbitration Provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp 6:24-7:1). The Arbitration Provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration." (Declaration of Trina Clayton ["Clayton Decl."], Ex.